Re: Fw: IHS Guidance: Crowdsourced Fundraising

From Kevin Turnage <kdturnage@protonmail.com>

To McCabe, Endreya (IHS/PHX)<Endreya.McCabe@ihs.gov>, Carmen (IHS/BIL/AO)<Carmen.Acosta@ihs.gov>, Naomi H. (IHS/PHX)<Naomi.Hixson@ihs.gov>

CC Drake, Emily<EDrake@osc.gov>, oig.hotline@oig.hhs.gov, Whistleblower.Coordinator@oig.hhs.gov

Date Monday, August 18th, 2025 at 10:36 PM

Dear Ms. DeVore,

Please find attached my formal memorandum in response to the ethics guidance recently forwarded to me regarding my GoFundMe campaign. The document addresses the agency's concerns in detail, affirms my full compliance with applicable ethics regulations, and includes a legal analysis of the inquiry's timing and implications.

As noted in the memorandum, I was unaware of the initial communication due to my lack of access to government systems while on administrative leave. I am now responding promptly and in good faith, and I have proposed an appropriate disclaimer to address any appearance-related concerns.

This memorandum is also being submitted as part of my ongoing filings with the U.S. Office of Special Counsel (OSC) and the Merit Systems Protection Board (MSPB), given the broader context surrounding this matter.

Please confirm receipt at your earliest convenience. I am available by personal email should any follow-up be necessary, as I remain unable to access my government account or systems.

Respectfully,

Hon. Kevin Dean Turnage, MSN Ed, RN
Tennessee Colonel Aide de Camp
NHDP-BC, NPD-BC, AMB-BC, NE-BC
Certified Federal Whistleblower
kdturnage@protonmail.com *(Encrypted Email)*
901-220-8664
PGP Fingerprint: `CDB6 543B 51C2 056B 5333 CECE 4C44 C5E3 7A30 4FF6`

Sent with Proton Mail secure email.

On Monday, August 18th, 2025 at 9:16 AM, McCabe, Endreya (IHS/PHX) <Endreya.McCabe@ihs.gov> wrote:

> Good morning Kevin,
>
> I am forwarding this e-mail message that was sent to you via your IHS email account, which I know you do not have access to currently.
>
> *Respectfully,*
> *Endreya M. McCabe BS, MT, MPH, PhD*

Director of Quality and Performance Improvement
Office of Quality Management
office: 602-248-4191
cell phone: 480-971-5991
endreya.mccabe@ihs.gov

From: DeVore, Yolanda J (IHS/NAV) <Yolanda.DeVore@ihs.gov>
Sent: Friday, August 15, 2025 11:04 AM
To: Turnage, Kevin D. (IHS/PHX) <Kevin.Turnage@ihs.gov>
Cc: McCabe, Endreya (IHS/PHX) <Endreya.McCabe@ihs.gov>; Acosta, Carmen (IHS/BIL/AO) <Carmen.Acosta@ihs.gov>; Hixson, Naomi H. (IHS/PHX) <Naomi.Hixson@ihs.gov>
Subject: IHS Guidance: Crowdsourced Fundraising

Kevin Turnage, RN

Nurse Consultant

Phoenix Indian Medical Center

The Ethics Office has learned that you have created a GoFundMe account also known as a Crowdsource. Ethics would like to take this opportunity to counsel you on several issues concerning Crowdsourcing related to your GoFundMe account. Fundraiser by Kevin Turnage : Help Kevin Turnage Fight for Healthcare Fairness

Based on the link to the GoFundMe account, the fundraising does not appear to be authorized by statute, EO, or regulation. The Combined Federal Campaign (CFC) or an OPM-approved disaster relief effort are generally the only authorized charitable fundraising in the federal workplace. NOTE: the definition of fundraising under 5 C.F.R. § 2635.808(a)(1) applies only to raising funds for nonprofit organizations (other than a political organizations) and can only be done through the CFC (5 C.F.R. Part 950). This situation doesn't appear to meet that definition since the funds are going to Kevin Turnage.

Further, the page appears to highlight your position with IHS, and appears to induce a benefit and/or indicate government endorsement or solicitation. **Ethics advises that any references to your federal position be removed.** For your reference, I've attached a helpful guidance document that touches on relevant issues of crowdsourcing.

To ensure compliance with ethics rules when engaging in crowdsourcing activities, federal government employees should be mindful of the following key points:

1. Avoid misuse of official position

- Government position or title should not be used to induce a benefit or be referenced in a way that suggests government endorsement of the solicitation.
- Pictures of yourself in uniform or insignia should not be used in connection with crowdsourcing efforts.
- Never ask for donations referencing federal employment status. For example, avoid statements like "I cannot pay these bills because I serve my country as an underpaid federal employee!"

2. Gifts from prohibited sources

- Generally, gifts cannot be accepted from prohibited sources—individuals or entities that have or seek to do business with your agency, conduct regulated activities, or whose interests could be affected by official duties.
- Crowdsourcing platforms may present difficulties in identifying prohibited sources, so caution is advised, and you should be prepared to reject such donations if they arise.
- Gifts from friends and family may be accepted, provided the donations are based on that personal relationship, not official position.

3. Gifts between employees

- The usual gift rules apply: Gifts generally cannot be given to superiors or accepted from subordinates, or those earning less pay than you.
- Exceptions exist for special occasions (e.g., holidays) or events that end the superior-subordinate relationship (e.g., retirement).
- Consult with your agency's ethics officer for specific guidance on gifts from colleagues in times of need or crisis.

4. Fundraising in the workplace

- Fundraising for charities in the federal workplace is generally restricted to the Combined Federal Campaign (CFC).
- Government resources (email, equipment) or government time may not be used to support personal fundraising efforts.
- Avoid soliciting funds from subordinates or prohibited sources at any time.

5. Potential for conflict of interest

- Participating in a crowdsourcing campaign related to your work could create a conflict of interest.
- Be aware that even campaigns not directly related to your work, but based on your status as a federal employee, could raise ethical concerns.

6. Seek advice from your ethics counselor

- When in doubt, it is always best to consult with your agency's ethics official or counselor before initiating or participating in a crowdsourcing campaign. They can provide guidance specific to your situation and help you navigate potential ethical issues.

By carefully considering these guidelines and seeking guidance when necessary, federal employees can ensure their crowdsourcing efforts align with the required ethics rules.

Ethics would like your official response to confirm that you have complied with the removal of any references to your federal position.

Thank you in advance for doing your part in ensuring an ethical workplace at IHS.

Respectfully,

Yolanda J DeVore,

Ethics Specialist

Indian Health Service: Division of Employee Accountability

Workforce Management Branch

Phone: (928-274-4150)

Email: yolanda.devore@ihs.gov or via Microsoft Teams

> Our Mission….to raise the physical, mental, social and spiritual health of American Indians and Alaska Natives to the highest level.
>
> Please use the following link:
>
> https://ihsgov.sharepoint.com/sites/OHR_ISS?CT=1750967416421&OR=OWA-NT-Mail&CID=26d3df01-05af-47aa-ffcc-1ace7f902011
>
> to submit your Ethics requests and questions to help us achieve your ethics goals and ensure your ethics needs are effectively met.

150.13 KB 1 file attached

Final Response to Ethics Office.pdf 150.13 KB